

CHAPTER 2 / HOW TO KEEP YOUR LICENSE

If you commit a serious traffic violation or several violations that are less serious, you can lose your driving privilege through suspension or revocation of your license.

“Suspension” means your license (or privilege to drive) is taken away for a period of time before it is returned. You may be required to pay a suspension termination fee.

“Revocation” means your license (or privilege to drive) is cancelled. To get a new license, you must re-apply to the Department of Motor Vehicles (DMV) once the revocation period is over. You may be required to pay a license re-application fee. Your application may be denied if you have a poor driving record or refuse to meet DMV requirements. Revocation periods may be longer than the minimum periods listed in this publication.

“Driving privilege” means the courtesy extended to out-of-state-drivers that allows them to drive a motor vehicle in New York State. It also refers to permission from New York State for a person without a license to get a New York driver license. A driving privilege can be suspended or revoked for the same reasons as are New York driver licenses. Driving with a suspended or revoked privilege carries the same penalties as driving with a suspended or revoked license.

SPECIAL RULES FOR DRIVERS WITH JUNIOR PERMITS AND LICENSES

Every driver with a junior permit or driver license could face sanctions and other penalties. For example, your permit, license or privileges will be suspended for 60 days if you are convicted of a serious traffic violation (three points or more) or two other violations.

Your junior permit, license or privileges will be revoked for 60 days if you are convicted of a serious violation (three points or more), or two other violations within the first six months after you receive your license or privileges back following suspension or revocation.

In addition, your junior permit, license or privileges will be suspended for 120 days when you are convicted of a texting or cell phone violation.

A junior permit must be held for a minimum of six months, excluding any time the permit is suspended or revoked, before a road test can be scheduled.

PROBATION PERIOD FOR ALL OTHER NEWLY LICENSED DRIVERS

If you are 18 or older when you pass your road test for a driver license, or obtain a license following revocation, you will be on probation for six months.

If you are convicted of DWAI (alcohol), speeding, reckless driving, following too closely, participating in a speed contest, or any two traffic violations while on probation, your license will be suspended for 60 days. Following the end of the 60-day suspension, a new six month probationary period will begin. If you are found guilty of one of the above violations or any two traffic violations during this second probationary period, your license will be revoked for at least six months. If your license is restored following the revocation, you will be on probation for another six months.

If you are convicted of a texting or cell phone violation, your probationary license will be suspended for 120 days.

IF YOU RECEIVE A TRAFFIC TICKET

If you receive a traffic ticket, do not delay – follow the instructions on the ticket for the plea you want to make. Your driver license will be suspended indefinitely. If you do not respond that you have received the ticket, you could be found guilty by default conviction.

The DMV Traffic Violations Bureau (TVB) processes the tickets for non-criminal moving traffic violations issued in the five boroughs of New York City. The TVB system allows the other courts in these areas to concentrate on criminal cases. This includes driving offenses like Driving While Intoxicated (DWI) and driving while suspended or re-